

Calendar Line 6

Case Name: *Ximen v. Linktel Technologies, Inc.*

Case No: 25CV481671

Code of Civil Procedure section 413.30 authorizes the Court to direct a manner of service reasonably calculated to give actual notice where no statutory provision specifically governs the circumstances presented. Due process requires a method of service reasonably calculated, under all the circumstances, to apprise interested parties of the pendency of the action and afford them an opportunity to respond.

Plaintiff has demonstrated reasonable diligence in attempting personal service. The supporting declarations further reflect that Defendants previously communicated through the identified email address concerning matters related to this dispute, but appear to have ceased communications while simultaneously avoiding traditional service attempts. Although the evidence of recent use of the email address is limited, there is no indication the address is inactive or undeliverable.

The Court further notes that service by publication is authorized pursuant to Code of Civil Procedure section 415.50 upon a sufficient showing of diligence. However, publication is generally regarded as a method of last resort and, under the circumstances presented here, appears no more likely to provide actual notice than electronic service directed to an email address previously utilized by Defendants in connection with the underlying dispute.

Under the totality of the circumstances, the Court finds that alternative service by email, together with mailing to Defendants' last known address, is reasonably calculated to provide actual notice and satisfies due process.

Accordingly, Plaintiff is authorized to serve the summons, complaint, and all accompanying papers by: (1) transmitting them to Defendants at known email addresses, and (2) mailing copies to Defendants' last known mailing address. Plaintiff shall thereafter file a proof of service identifying the email address and mailing address utilized and attaching confirmation of transmission and mailing. Service shall be deemed complete upon transmission and deposit in the mail.

Plaintiff to prepare the final proposed order accompanied by necessary Form EFS-020 within 7 days of the hearing.

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